



Tataskweyak Cree Nation

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April 22, 2025

The Hon. Joanne Thompson
Minister of Fisheries, Oceans and the Canadian Coast Guard
Via email: DFO.Minister-Ministre.MPO@dfo-mpo.gc.ca

Dear Minister Thompson:

Re: *Fisheries Act* Authorization for Missi Falls Control Structure

We write on behalf of Tataskweyak Cree Nation (TCN).

As you are aware, TCN is working with the Ministry of Fisheries, Oceans and the Canadian Coast Guard (DFO) to assess the impacts of the Churchill River Diversion (CRD) project and related infrastructure, including the Missi Falls Control Structure. As part of this work, DFO provided funding for TCN to undertake traditional knowledge and science-based studies regarding sturgeon and sturgeon habitat on the Lower Churchill River. TCN has also committed significant financial resources of its own to study, monitor and better understand the challenges and impacts of Manitoba Hydro's projects on TCN rights and traditional lands.

TCN recently shared the results of these studies with DFO as part of a draft report entitled *The Effects of the Churchill River Diversion Sturgeon on the Lower Churchill River*. The report confirms that the building and operation of the Missi Falls Control Structure has caused and continues to cause damage to sturgeon populations and sturgeon habitat.

We wish to emphasize our deep concerns about the Missi Falls Control Structure, and the CRD project as a whole. For decades, these structures have had devastating effects on sturgeon populations on the lower Churchill River. They have also had significant, negative impacts on our Treaty right to fish, and on our ability to maintain our culture, identity and way of life. DFO has been aware of our concerns for years. However, to our knowledge there are no existing *Fisheries Act* authorizations regarding the CRD project or related infrastructure.

In light of the above, we were encouraged to learn the DFO now intends to issue a decision requiring Manitoba Hydro to apply for a *Fisheries Act* authorization in connection with the Missi Falls Control Structure.

We trust and expect DFO will act honourably and fulfil the Crown's constitutional obligations prior to proceeding with any *Fisheries Act* authorizations which could affect our inherent and

Treaty rights. At minimum, this requires an iterative, good faith process of engagement in which DFO seeks to understand and address TCN's concerns, as well as access to adequate time and resources to enable TCN to participate in all aspects of consultation on an informed basis.

We also remind you that consultation must be consistent with the standard of free, prior and informed consent (FPIC) as affirmed in the United Nations Declaration on the Rights of Indigenous Peoples and the *United Nations Declaration on the Rights of Indigenous Peoples Act*, SC 2021, c 14. Upholding the FPIC standard requires an enhanced consultation process which reflects TCN's inherent laws, knowledge and practices, and which is directed to finding mutual agreement between the parties.

TCN holds inherent rights and responsibilities as the original caretakers of the lands and waters throughout its traditional territory. TCN responsibilities for integrated land use and resource management as well as environmental monitoring and investigation, including in respect of the Churchill River, have been expressly recognized by Manitoba, Manitoba Hydro, and Canada.

As a next step, we propose a meeting between TCN and DFO staff to discuss the development of a respectful, collaborative consultation process which is consistent with DFO's obligations under s.35 of the *Constitution Act, 1982* and the FPIC standard.

Please contact me directly at your earliest convenience to arrange timing and dates for a meeting.

Sincerely,



Chief Doreen Spence
Tataskweyak Cree Nation

Cc:

Richard Rudolph, Area Supervisor, DFO
Melanie VanGerwen-Toyne, Regional Manager, Species at Risk, DFO
Terry Duguid, MP, Minister of Environment and Climate Change